

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-25-631802)

**APPENDIX OF DEFENSE
CONDUCT RECORDS
(EXHIBITS R-1 THROUGH R-6)**

Purpose: Preservation only; no relief sought
R-7 is documented in GAPS .md and omitted from this volume.

1 **Filing context:** Filed concurrently with Plaintiff’s Supplemental Request for Judicial Notice (Reyna
2 conduct records) and Notice of Lodging (Appendix R).

3 **Appellate preservation:** Filed for preservation of the appellate record in *Rosario v. Abdel-*
4 *halim*, Cal. 1st Dist. Ct. of Appeal, Case No. A173827, under California Rules of Court, rules
5 8.124(b)(1)(B) and 8.155(a)(1)(A). **No relief sought** from the trial court.

6 **I. AUTHORITY TO FILE AND CLERK ACCEPTANCE**

7 **A. Plaintiff’s Right to File**

8 Plaintiff files this paper in pro per. Code of Civil Procedure sections 367 (real party in interest),
9 1014 (appearance), 1010 (notice and papers), 1005(b) (service timing), 916(a) (limited stay; trial
10 court retains jurisdiction over collateral matters), and 425.16(i) (anti-SLAPP appeal does not stay
11 ancillary proceedings) authorize the filing. Business and Professions Code section 6125 bars only
12 the representation of others and does not prohibit a party from filing papers on the party’s own be-
13 half. *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654 (pro per litigant has standing to file). Califor-
14 nia Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252 authorize appellate-
15 record preservation filings in the trial court during the pendency of an appeal. Evidence Code
16 sections 452(d), 452(h), 453, and 459 authorize judicial notice requests at both the trial and appel-
17 late levels. *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (party may place matters on
18 the trial-court record for appellate preservation). *Varian Medical Systems, Inc. v. Delfino* (2005)
19 35 Cal.4th 180, 189 to 191 (trial court retains jurisdiction to enforce or modify collateral orders
20 notwithstanding a pending appeal). *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 (section 916(a)
21 stay does not divest the trial court of jurisdiction over matters not embraced in or affected by the
22 judgment). U.S. Const. amend. I (petition clause), amend. XIV; Cal. Const. art. I, sections 3 and
23 7 (due process, petition, and access to courts).

24 **B. Clerk’s Duty to Accept**

25 Government Code sections 26800 et seq., 69846.5, and 70617 define the clerk’s ministerial duties;
26 none authorizes a clerk to refuse a conforming paper on substantive grounds. California Rules

1 of Court, rules 1.20, 2.100, 2.118, and 2.259(c) govern format compliance and filing obligations.
2 SFTC Local Rules 2.10, 2.11, and 8.10 apply to electronic filings in this court. *Voorhies v. Greene*
3 (1983) 139 Cal.App.3d 989, 994 to 995 (clerk has no discretion to refuse filing of a conforming
4 paper; the duty is ministerial). *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276,
5 279 to 280 (refusal to file is subject to mandamus). *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774,
6 777 to 778 (clerk cannot require a party to obtain court approval before accepting a conforming
7 document for filing). *Carlson v. Department of Fish and Game* (1998) 68 Cal.App.4th 1268, 1271
8 (ministerial duty to file conforming papers).

9 **C. Per-Document Authority (Reyna Conduct Appendix)**

10 California Rules of Court, rule 3.1110(f)(4) (electronic bookmarks); rule 3.1306(c) (form of records
11 noticed under Evidence Code section 452(d)); rules 8.124(b)(1)(B) and 8.155(a)(1)(A) (appellate-
12 record preservation); Evidence Code sections 452(d), 453, and 459; Gov. Code section 69846.5;
13 CRC 2.259(c); *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397; *Voorhies v. Greene*
14 (1983) 139 Cal.App.3d 989, 994 to 995; *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654. This ap-
15 pendix is lodged under CRC 3.1110(f) in support of Plaintiff's Supplemental Request for Judicial
16 Notice (Reyna conduct records) and Notice of Lodging (Appendix R). Each exhibit is a court or
17 party record already in the public docket or lodged for preservation. Plaintiff seeks no relief from
18 the trial court.

19 **II. FORMAT COMPLIANCE**

20 All exhibits in this volume have been processed for OCR text layer (CRC 2.256(b)), electronic
21 bookmarks (CRC 3.1110(f)(4)), and hyperlink removal (SFTC LR 8.10). Open gaps are listed in
22 GAPS.md. Exhibit R-7 is not included; see GAPS.md.

Dated: May 26, 2026



Franciscus Dylan Rosario

Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
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TABLE OF CONTENTS

Front Matter	2
Exhibit R-1	6
Exhibit R-2	29
Exhibit R-3	16
Exhibit R-4	21
Exhibit R-5	33
Exhibit R-6	25
Compliance Certificate	37

EXHIBIT INDEX

Exhibit	Document	Date	Vol.	Page
R-1	Complex Deposition Subpoena (SFPD, Order CA1147102-021)	Feb. 1, 2024	6	
R-2	RT Vol. 7 subpoena denial colloquy	Apr. 2025	16,	29
R-3	MIL No. 17 (911 provenance)	Jan. 2025	17,	16
R-4	MIL No. 6 clerk excerpt	Jan. 2025	17,	21
R-5	Feb. 18, 2025 hearing RT excerpt	Feb. 2025	18,	33
R-6	CSAA denial letter	Feb. 2021	25,	25
R-7	Reyna 2024 discovery letter (GAP)	(not included)	in-	GAP

1 **EXHIBIT R-1**

2 **Complex Deposition Subpoena (SFPD, Order CA1147102-021)**

3 **Feb. 1, 2024**

4 **Contents / pin cites:**

- 5
 - Full subpoena

6 Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

7 Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco



**THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102
ATTN: CHRISTOPHER B. DOLAN**

**CASE NAME: FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM INDIVIDUALLY, AND
 DBA SONOMA LIQUOR**

FILE NO: 1004-09-1054

COMPEX LEGAL SERVICES
325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503
855-279-2396

RECORD REQUEST FORM

Compex Order: CA1147102

CHRISTOPHER B. DOLAN
THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102

01/31/2024

RE: FRANCISCUS DYLAN ROSARIO V. SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR
Case No.: CGC-21-594102
Record Subject: FRANCISCUS DYLAN ROSARIO
Records requested by: PHILLIPS, SPALLAS & ANGSTADT LLP

DEAR CHRISTOPHER B. DOLAN:

Compex Legal Services has been requested by the firm named above to obtain records from the locations listed below.

If you require copies of any of these records, please indicate by checking the box next to the appropriate location(s) and sign and return the form to Compex Legal Services. If no boxes are checked, we will produce copies for all locations.

Please note:

Checking the box next to a location indicates that you would like to receive a copy of the records obtained by Compex Legal Services.

Should you wish to order any additional services such as summaries or record reorganization, please indicate in the provided fields below. If you check "Films" and/or "Other", these occasionally include copies of original items such as photos, blueprints, video, or audio tapes, so this order must be submitted within (2) business days of receipt of this notice to assure proper delivery.

Please select preferred mode of delivery:

☐ **Electronic** ☐ **CD** *If nothing is checked, records will be posted electronically to our web portal

Records Films Other
 (If requested)

☐ ☐ ☐ CA1147102-021 - SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)

☐ Furthermore, on behalf of the consumer, and in accordance with CCP 2020(d)(4), I stipulate to an early release of all documents and items listed above, from all locations listed herein, waiving all time for statutory holds. The documents and other items may be copied and released prior to the deposition date listed on the subpoena(s).

Medical Record Summarization

Check only one:

- ☐ Full Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
 3. Billing Summary
- ☐ Medical Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
- ☐ Basic Reorganization includes:
1. Chronological Record Reorganization with Visit Index

Additional Summary Instructions

All locations will be summarized, unless otherwise specified

- ☐ Medical locations only
- ☐ Billing locations only
- ☐ Medical and Billing locations
- ☐ OCR records
- ☐ If additional records are received after a summary is produced, the supplemental summary can be merged with the original for \$25 per merge.

Summary Delivery Instructions

- ☐ Electronic copy delivered to my Compex account
- ☐ CD

If your firm has an account with Compex Legal Services, normal billing will apply. If you represent an insurance carrier and prefer that we bill them directly, please provide the following information:

Carrier _____ Adjuster _____
Address _____ Phone _____
City, St _____ Zip _____
Claim _____ Insured _____

Your signature below confirms that you are ordering these items and agree to the terms and conditions (attached)

Authorized Signature _____ Date _____
(Required)
Print Name _____ Title _____
E-mail _____ Phone _____ Fax _____
(Mandatory field if Electronic records are being requested)

COMPEX STANDARD TERMS AND CONDITIONS

The following Standard Terms and Conditions are an integral part of your contract with COMPEX. These terms are in addition to the terms provided to you as part of your sales proposal. If any terms of any sales proposal provided to you by COMPEX conflicts with any term stated here, then the terms stated herein shall control except to the extent that the proposal specifically states that it takes precedence over these Standard Terms and Conditions.

Instructions. You are responsible for clearly instructing COMPEX as to exactly what work COMPEX is to perform for you. This is the only way COMPEX can ensure that its production staff understands your needs and can deliver a high-quality work product. Your designated COMPEX representative will then provide you with a detailed, clear and precise written description of the work to be performed by COMPEX. However, if they fail to do so, it is solely your responsibility to demand one from them. In the alternative, you may choose to write and deliver such a written description to COMPEX before COMPEX begins work on your project. You agree to be responsible for any ambiguity in the instruction that COMPEX follows in completing your work and for reaching out to secure log in credentials to our web portal in order to access records delivered electronically if that is your requested delivery mode.

Change Orders. If after COMPEX begins work on your project, you decide you want the work done differently than as specified in the original instructions then you shall be solely responsible for providing revised instructions to COMPEX. If COMPEX incurs costs in conjunction with following any revised instructions, whether through re-work, abandoned work, or additional work, then you shall pay an additional charge consistent with the new work and with the original contract pricing. Your obligations regarding written instructions, as described in the instructions paragraph above, shall apply to all change orders.

Production of Records. COMPEX cannot guarantee the custodian of records will make the records available. If the records are made available, COMPEX will use its best efforts to assure their production within 5 working days. If the records have already been produced, COMPEX may require as long as 10 working days to retrieve and produce a duplicate set from its archives. You will receive an exact copy of the response provided by the location, even if a Certificate of No Records is provided.

Payment. Unless otherwise agreed in writing, the fees described will apply to each location requested. You will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each record location ordered. In addition, for each location ordered, you will pay \$0.40 for each and every page we obtain and reproduce (paper, CD and/or electronic) and \$12.50 for each CD of material or document ordered. These charges apply regardless of the number of pages reproduced, and to locations where there are no records. Payment is due for goods and services no later than ten days following the invoice date. COMPEX may, at its discretion, require prepayment up front, or on delivery. If your order is received later than 2 weeks from the original order date, a \$15.00 late processing fee will be applied to each location that is produced.

Pricing and Payment terms for original items duplicated. Unless otherwise agreed in writing, you will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each and every record location listed above. In addition, you will pay \$15.00 for each x-ray, CT scan, MRI; \$2.00 for each photograph; \$12.50 per CD; \$2.00 per square foot for blueprints we obtain and reproduce. These charges apply regardless of the number of items reproduced, and for locations where there are no records. Payment is due for goods and services no later than ten days following invoice date. COMPEX may, at its own discretion, require payment up front, or on delivery.

Late Charges. The price agreed by COMPEX for your work was agreed only with the understanding that it would be paid within the time allowed under paragraph 3 above. Thereafter, beginning on the 30th day following the invoice date, a 1.5% per calendar month price premium applies and the total amount due shall be compounded monthly at this rate.

Arbitration. You and COMPEX agree that any controversy or claim arising out of or related to this contract, or the breach thereof, shall be decided by binding arbitration that is subject to the Federal Arbitration Act and that shall be administered by the American Arbitration Association under its applicable rules (provided that, if, for any reason, the AAA is unable to administer the arbitration, JAMS shall do so). Any such arbitration must be brought exclusively in Los Angeles County, State of California. You and COMPEX each waive the right to proceed in court, the right to a jury trial, and the right to appeal. You agree that your claim shall be heard and decided individually. You shall have no right or authority to have any claims arbitrated on a class action basis (as a class member, class representative, or otherwise), nor shall your claim be joined with other claims.

Exclusion of Certain Types of Damages. You and COMPEX agree that, except as may be otherwise provided under applicable laws, neither party shall be liable to the other for any indirect, incidental, consequential, special, punitive, or exemplary damages.

Limitations of Liability. Your recovery on any claim shall be limited to the dollar value of this contract.

Attorney's Fees. In any dispute between you and COMPEX arising from your contract with COMPEX, the prevailing party shall be entitled to recover reasonable attorney's fees, reasonably incurred costs, and reasonably incurred expert fees, except to the extent prohibited by applicable law or the applicable arbitration rules.

Waiver. If, at any time, COMPEX's services do not conform to your expectations, you must notify COMPEX in writing within a reasonable time, not to exceed 30 days, stating precisely the nature of your complaint. Your failure for any reason whatsoever to provide such written notice shall constitute a waiver of any and all claims based on such non-conformity, and no evidence of such non-conformity shall be admissible in any legal proceeding unless first offered by COMPEX.

Disclaimer of Warranty. COMPEX disclaims all implied warranties including, without limitation, but not limited to, the implied warranties of merchantability and fitness for a particular purpose, and all express warranties except those explicitly made in these Standard Terms and Conditions. Certain state laws may not allow limitations on implied warranties. If these laws apply to you, some or all of the above disclaimers may not apply to you, and you might have additional rights.

Governing Law. This contract shall be governed and construed in accordance with the laws of the State of California, without regard to its conflicts of law provisions. You agree to waive any and all objections that you may have to California law as the governing law and to the sole and exclusive venue being Los Angeles County, California.

Miscellaneous. Fax and emailed signatures shall have the effect of original signatures. This contract may be executed in counter-parts. These Standard Terms and Conditions form an essential but not a complete statement of the contract between you and COMPEX.

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY CASE NUMBER: CGC-21-594102
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS		

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO SUBHI ABDELHALIM INDIVIDUALLY, AND DBA DEFENDANT/RESPONDENT: SONOMA LIQUOR	CASE NUMBER: CGC-21-594102
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**PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS**

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

- a. Person served (name):
- b. Address where served:
850 Bryant Street, Suite 511, San Francisco, CA 94103
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☒ Witness fees were paid.
Amount: _____ \$ 15.00
- (2) ☐ Copying fees were paid.
Amount: _____ \$ _____
- f. Fee for service: \$ _____

2. I received this subpoena for service on (date):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff or marshal.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
- f. ☒ Registered professional photocopier.
- g. ☐ Exempt from registration under Business and Professions Code section 22451.
- h. Name, address, telephone number, and, if applicable, county of registration and number:

Compex Legal Services, Inc.
325 Maple Avenue
Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

Date:

▶ _____
(SIGNATURE)

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

ATTORNEY OR PARTY WITHOUT ATTORNEY (<i>Name, State Bar number, and address</i>): ALBERTO REYNA (BAR# 347323) 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO. (<i>Optional</i>): 415-278-9411 E-MAIL ADDRESS (<i>Optional</i>): areyna@psalaw.net ATTORNEY FOR (<i>Name</i>): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF / PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT / RESPONDANT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
NOTICE TO CONSUMER OR EMPLOYEE AND OBJECTION <i>(Code Civ. Proc., §§ 1985.3, 1985.6)</i>		CASE NUMBER: CGC-21-594102

NOTICE TO CONSUMER OR EMPLOYEE

TO (name): FRANCISCUS DYLAN ROSARIO

1. PLEASE TAKE NOTICE THAT **REQUESTING PARTY (name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR**
SEEKS YOUR RECORDS FOR EXAMINATION by the parties to this action on *(specify date): 02/26/2024*
The records are described in the subpoena directed to **witness (specify name and address of person or entity from whom records are sought): SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511
SAN FRANCISCO, CA 94103
A copy of the subpoena is attached.
2. IF YOU OBJECT to the production of these records, YOU MUST DO ONE OF THE FOLLOWING BEFORE THE DATE SPECIFIED
IN ITEM a. OR b. BELOW:
- a. If you are a party to the above-entitled action, you must file a motion pursuant to Code of Civil Procedure section 1987.1 to quash or modify the subpoena and give notice of that motion to the **witness** and the **deposition officer** named in the subpoena at least five days before the date set for production of the records.
- b. If you are not a party to this action, you must serve on the **requesting party** and on the **witness**, before the date set for production of the records, a written objection that states the specific grounds on which production of such records should be prohibited. You may use the form below to object and state the grounds for your objection. You must complete the Proof of Service on the reverse side indicating whether you personally served or mailed the objection. The objection should **not** be filed with the court. **WARNING: IF YOUR OBJECTION IS NOT RECEIVED BEFORE THE DATE SPECIFIED IN ITEM 1, YOUR RECORDS MAY BE PRODUCED AND MAY BE AVAILABLE TO ALL PARTIES.**
3. YOU OR YOUR ATTORNEY MAY CONTACT THE UNDERSIGNED to determine whether an agreement can be reached in writing to cancel or limit the scope of the subpoena. If no such agreement is reached, and if you are not otherwise represented by an attorney in this action, YOU SHOULD CONSULT AN ATTORNEY TO ADVISE YOU OF YOUR RIGHTS OF PRIVACY.

Date: 02/01/2024

ALBERTO REYNA

(TYPE OR PRINT NAME)



/S/ ALBERTO REYNA

(SIGNATURE OF

7

REQUESTING PARTY☒

ATTORNEY)

OBJECTION BY NON-PARTY TO PRODUCTION OF RECORDS

1. ☐ I object to the production of all of my records specified in the subpoena.
2. ☐ I object only to the production of the following specified records:
3. The specific grounds for my objection are as follows:

Date:

(TYPE OR PRINT NAME)

(SIGNATURE)

(Proof of service on reverse)

CASE NUMBER:
CGC-21-594102

DEFENDANT/RESPONDENT: SONOMA LIQUOR

☒ **Personal Service/Email** ☐ **Mail**

- (TYPE OR PRINT NAME OF PERSON WHO SERVED)

► 

(SIGNATURE OF PERSON WHO SERVED)

☐ **Personal Service** ☐ **Mail**

- (TYPE OR PRINT NAME OF PERSON WHO SERVED)

(SIGNATURE OF PERSON WHO SERVED)

EXHIBIT R-3

MIL No. 17 (911 provenance)

Jan. 17, 2025

Contents / pin cites:

- Clerk pp. 238-241

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
**PRECLUDE PLAINTIFF FROM USING
OR REFERENCING AN ALLEGED 911
TRANSCRIPT LOG AND AUDIO
RECORDING AS IT WAS NOT
DISCLOSED IN DISCOVERY, LACKS
FOUNDATION AND IS INADMISSIBLE
HEARSAY****

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 from the jury's hearing. Although a Motion *in Limine* is not specifically mentioned by any California
2 statute, it has long been accepted as part of the Court's power to conduct trial in an orderly manner. (See
3 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
4 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
5 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
6 presence of a jury. See Cal. Evid. Code § 402.

7 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

8 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
9 DYLAN ROSARIO *in pro per* ("Plaintiff"), Plaintiff's witnesses, and any other parties and their agents,
10 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
11 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
12 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff's witnesses of the
13 Court's Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
14 discussed below.

15 **A. Purported 911 Log and Recording Should be Excluded as it Was Not Disclosed in**
16 **Discovery; Lacks Foundation and is Inadmissible Hearsay**

17 Defendant anticipates that Plaintiff will try to introduce an unauthenticated document entitled
18 "Official Transcript of 911 Call" and an unauthenticated audio recording which Plaintiff purports to be a
19 911 call log and an audio recording of a 911 call relating to the incident. First, this alleged log and
20 recording were not produced during discovery, rather produced at the eleventh hour prior to trial.
21 Second, both the alleged log and recording completely lack foundation, are not authenticated and is
22 inadmissible hearsay. Defendant has no idea where this 911 call log or audio recording came from and
23 who created it.

24 Defendant seeks an order precluding Plaintiff from offering the alleged 911 call log and the
25 recording into evidence as Plaintiff. This Order applies to every stage of trial. Violations of this Order
26 shall be grounds for such relief as the Court, in its discretion, deems proper, up to and including the
27 granting of a mistrial. This Order shall be made pursuant to the court's holding in *Deeter v. Angus*
28 (1986) 179 Cal.App.3d 241.

1 If Plaintiff failed to produce documents or audio recordings in his possession which were
2 requested, this clearly would constitute a misuse of the discovery process. Code of Civil Procedure §
3 2023. Courts have found that withheld evidence, including documents, is appropriately excluded
4 because, among other reasons, it “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal.
5 App. 3d at 255. Further, this Court has the authority to exclude at trial any and all evidence that Plaintiff
6 has withheld from discovery. *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

7 Further, California *Evidence Code* § 1401 provides: “(a) Authentication of a writing is required
8 before it may be received in evidence. (b) Authentication of a writing is required before secondary
9 evidence of its content may be received in evidence.”

10 California *Evidence Code* § 403 provides: “(a) The proponent of the proffered evidence has the
11 burden of producing evidence as to the existence of the preliminary fact, and the proffered evidence is
12 inadmissible unless the court finds that there is evidence sufficient to sustain a finding of the existence
13 of the preliminary fact, when: (1) The relevance of the proffered evidence depends on the existence of
14 the preliminary fact; (2) The preliminary fact is the personal knowledge of a witness concerning the
15 subject matter of his testimony; (3) The preliminary fact is the authenticity of a writing; or (4) The
16 proffered evidence is of a statement or other conduct of a particular person and the preliminary fact is
17 whether that person made the statement or so conducted himself.”

18 California *Evidence Code* § 1200 states that “(a) “Hearsay evidence” is evidence of a statement
19 that was made other than by a witness while testifying at the hearing and that is offered to prove the
20 truth of the matter stated. (b) Except as provided by law, hearsay evidence is inadmissible.”

21 “Hearsay may be briefly understood as an out-of-court statement offered for the truth of its
22 content. Evidence Code section 1200, subdivision (a) formally defines hearsay as “evidence of a
23 statement that was made other than by a witness while testifying at the hearing and that is offered to
24 prove the truth of the matter stated.” A “statement” is “oral or written verbal expression” or the
25 “nonverbal conduct of a person intended by him as a substitute for oral or written verbal expression.”
26 (Evid.Code, § 225.) Senate committee comments to Evidence Code section 1200 explain that a
27 statement “offered for some purpose other than to prove the fact stated therein is not hearsay.” [Internal
28 Citation Omitted] Thus, a hearsay statement is one in which a person makes a factual assertion out of

1 court and the proponent seeks to rely on the statement to prove that assertion is true. Hearsay is
2 generally inadmissible unless it falls under an exception. (Evid.Code, § 1200, subd. (b).)” (*People v.*
3 *Sanchez* (2016) 63 Cal. 4th 665, 674)

4 Plaintiff has not provided any information as to the source of this audio file and transcript log nor
5 provided any documentation that would certify or authenticate said transcript log and audio file. Plaintiff
6 has not laid any foundation to establish the authenticity of the purported 911 call log and the audio
7 recording. Plaintiff has not established the chain of custody for either the log or the recording. Defendant
8 has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the
9 identity of the custodian of the log and recording. It does not appear that either the log or the recording
10 were obtained via proper subpoena process.

11 The document which Plaintiff purports is an alleged 911 call log and the alleged audio recording
12 lack foundation and is inadmissible hearsay.

13 **III. CONCLUSION**

14 For all the foregoing reasons, Defendant respectfully requests and moves to preclude Plaintiff
15 from using or referencing a 911 audio recording and transcript log at trial.

16
17 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

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19 

20 Robert K. Phillips
21 Priya Navaratnasingham
22 Alberto Reyna
23 Attorneys for Defendant
24 SUBHI ABDELHALIM
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EXHIBIT R-4

MIL No. 6 clerk excerpt

Jan. 17, 2025

Contents / pin cites:

- Clerk pp. 149-151

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
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Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
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from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

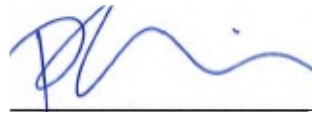
1 result in the exclusion of such evidence. Therefore, Defendant respectfully requests that the Court
2 exclude all documents and evidence, including but not limited to videos, photographs, recorded
3 materials, tangible items, or documents including audio of a 911 call purported to be related to the
4 incident, Plaintiff's documents showing past and future wage loss or other evidence that Plaintiff has
5 failed to produce in discovery.

6 **III. CONCLUSION**

7 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
8 aforementioned evidence.

9
10 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

11
12 

13 _____
14 Robert K. Phillips
15 Priya Navaratnasingham
16 Alberto Reyna
17 Attorneys for Defendant
18 SUBHI ABDELHALIM
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EXHIBIT R-6

CSAA denial letter

Feb. 25, 2021

Contents / pin cites:

- Letter

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco

EXHIBIT F

CSAA Feb. 25, 2021 Denial Letter

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: CSAA Claim File



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117808 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086



Note: Page numbers printed on embedded PDF images reflect the source filings. Citations in this filing use reporter, transcript, and clerk pagination for the master packet.

EXHIBIT R-2

RT Vol. 7 subpoena denial colloquy

Apr. 16, 2025

Contents / pin cites:

- Printed pp. 154, 157, 159
- Quote on RT 157

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco

1 Q. Why was that?

2 A. Our department policy is for vehicle
3 collisions, if a party causes injury to someone else
4 and they are at fault, we cite them.

5 If the person is at fault and they only cause
6 injury to themselves, we don't cite them.

7 Q. You didn't cite Mr. Rosario because it was
8 your determination, based upon the investigation, he
9 caused injuries to himself?

10 A. Correct.

11 MR. ROSARIO: Objection. He didn't run the
12 investigation; he collected the information to report
13 that.

14 THE COURT: It is overruled.

15 MS. NAVARATNASINGHAM: Q. And my client was
16 not cited, correct?

17 A. Correct.

18 Q. Why is that?

19 A. I didn't find any vehicle code violation.

20 Q. As far as the police report, do you recall if
21 you ever received any inquiries from Mr. Rosario to
22 make any changes to the report?

23 A. I don't believe so.

24 Q. If such an query had been made, that would be
25 noted, correct?

26 A. Correct.

27 Q. According to your report, Mr. Rosario was
28 examined at the scene by an ambulance personnel. Is

1 A. I only was able to watch my body cam.

2 Q. Correct. So for this one -- this was filed,
3 I believe, on November 15th of 2024 -- on the
4 supplemental testimony regarding the incident.

5 MS. NAVARATNASINGHAM: Your Honor, for the
6 record, I do want to just state, as far as this
7 document goes, this is not -- we subpoenaed the police
8 records for the incident and this is not anything that
9 we received as part of the subpoena.

10 I do also want to note for the record the
11 incident occurred February 4, 2021.

12 It appears that this supplement was submitted
13 by Mr. Rosario on November 13, 2024, over three years
14 after the subject incident.

15 So I would say this is unreliable and lacks
16 foundation.

17 MR. ROSARIO: It is still part of the police
18 report. It has got the stamps on it, it says: SFPD
19 crime information services.

20 It is part of the report. We just clarified
21 "people are" and the Defense just asked: People are
22 supposed to add a supplement.

23 There is a supplement now.

24 THE COURT: It is -- sir, it may very well be
25 part of the original police report; however, number
26 one, it is beyond the scope of the original -- the
27 cross-examination in this matter.

28 She did not, as far as I recall, address

1 report -- and I guess in certain cases -- for example,
2 this Court just brought it to your attention -- what
3 happens then, when you have been aware that there is a
4 new supplement that has been added?

5 What do you do?

6 A. For a supplemental, I don't receive any
7 notification that you made a supplemental.

8 This would just be forwarded to the traffic
9 division. They would review it.

10 But I was never made aware of it so I don't
11 have any knowledge of this, sir, or anything.

12 Q. The traffic division is effectively like the
13 final word on these things. They could update your
14 report, correct?

15 A. They wouldn't update my report. They could
16 continue the investigation if they deem it necessary.

17 Q. All right. Here is a question that was asked
18 to you during your deposition.

19 THE COURT: No. This is beyond the scope of
20 the cross-examine.

21 MR. ROSARIO: It is in response to her. It
22 is a redirect.

23 MR. ROSARIO: Q. Are scooters traveling the
24 bike lane --

25 MS. NAVARATNASINGHAM: I object to him
26 reading from the deposition transcript when the
27 witness is here.

28 MR. ROSARIO: We are validating --

EXHIBIT R-5

Feb. 18, 2025 hearing RT excerpt

Feb. 18, 2025

Contents / pin cites:

- PDF pp. 139-141

Lodged under CRC 3.1110(f); plaintiff in pro per under CCP section 1014; record preservation under CRC 8.124(b)(1)(B).

Case No.: CGC-25-631801 — Superior Court of California, County of San Francisco

1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

EXHIBIT-VOLUME COMPLIANCE CERTIFICATE

Cohort: R

Exhibit	OCR	Links	Pages	Bytes	SHA-256 (first 16)
Exhibit R	PASS	PASS	9	1322283	a0c28df71671e377
Exhibit R	PASS	PASS	4	230408	2bfdbfd035724c9d
Exhibit R	PASS	PASS	3	223459	7f8e3975a6396227
Exhibit R	PASS	PASS	3	1215102	989a0dbb3e833f8d
Exhibit R	PASS	WARN	3	6747	944320fe5c652109
Exhibit R	PASS	PASS	3	17518	e122a4d92a4845e5

I certify the above table is accurate as of this build. Franciscus Dylan Rosario, Plaintiff in pro per.